

emergency medical transports was unreasonable; CUEVA then directed his subordinates to enforce his orders. The complaint also states that CUEVA would approve Plaintiff's phone calls to a legal help center but another defendant, B. EBERT, would interfere and delay or deny the calls. There is no cognizable action stated against CUEVA in these allegations.

Leave to Amend. Leave to amend is proper where identified defects are amenable to cure. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) It is the pleading party's burden to show the trial court that a reasonable possibility exists that amendment can cure identified defects in that party's pleading. (*Murphy v. Twitter, Inc.* (2018) 60 Cal.App.5th 12, 42.)

Plaintiff filed opposition to the demurrer on April 17, 2026. The opposition papers include a proposed amended complaint. However, the proposed amended complaint is substantially a restatement of the operative complaint and so does not demonstrate a reasonable possibility that amendment would cure the lack of a cognizable action against CUEVA in the operative complaint. Where the proposed amended complaint adds new material it adds only legal argument and allegations of general inequality in the prison system that do not implicate CUEVA specifically.

Conclusion. CUEVA's demurrer is sustained without leave to amend.

**JEFF OSUNA; ET AL. vs. RIVER DELTA UNIFIED SCHOOL DISTRICT; ET AL.
Case No. CU24-09522**

Motion to Compel Depositions

TENTATIVE RULING

Plaintiffs' motion to compel depositions is continued, on the court's own motion, to July 14, 2026 in Department 7 at 9:00 a.m., to be heard concurrently with Defendants' motion for protective order.

**CARISSA TIMBALL vs. CITY OF BENICIA; ET AL.
Case No. CU25-05707**

CALTRANS's Demurrer to Plaintiff's Complaint

TENTATIVE RULING

Defendant STATE OF CALIFORNIA BY AND THROUGH THE CALIFORNIA DEPARTMENT OF TRANSPORTATION ("CALTRANS") demurs to Plaintiff CARISSA TIMBALL's first amended complaint ("1AC") alleging a dangerous condition of public property.